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Organic law of the Republic of Belarus “On gender equality”

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Organic law of the Republic of Belarus “On gender equality”

Preamble

The Organic Law on Gender Equality is intended to ensure equal rights and opportunities for all people in the Republic of Belarus, regardless of sex, gender identity or sexual orientation.

This Law is also aimed at fulfilling international obligations of the Republic of Belarus in the field of protection of the rights of women, representatives of LGBTQ and other vulnerable gender groups in accordance with the Convention on the Elimination of All Forms of Discrimination against Women and other international acts.

This Law defines the legal and social basis of fair gender policy, as well as possible paths of developing institutional mechanisms and establishing national institutions and measures to ensure compliance with the principles of gender equality at all levels of state and public life.

CHAPTER 1. GENERAL PROVISIONS

Article 1. Basic terms and definitions used in this Law:

gender – a set of social, cultural norms and roles of men and women that determine their behavior and social relationships between them;

gender-based disinformation – deliberate dissemination of misleading statements, which do not correspond to reality, regarding the rights, opportunities and social roles of people of different sexes, gender identity or sexual orientation, accusations and assaults on them with the purpose of weakening or preventing political and civic activity of individuals or social groups;

gender discrimination (direct) – any distinction, exclusion, preference or restriction made on the basis of biological sex, sexual orientation or gender identity, which serves the purpose or results in infringing or diminishing the recognition or realization of human rights and freedoms;

gender discrimination (indirect) – an act or omission, legal norm, criteria, evaluative judgments or practices, which are formally gender-neutral, but the application thereof may place persons of a certain sex, gender identity and/or sexual orientation in a less favorable position compared to persons of another sex, gender identity and/or sexual orientation;

gender identity – a person’s sense of belonging to a certain gender group, namely:

- a female or male social group – **binary gender identity (female or male)**;
- a gender identity that is opposite to the sex assigned at birth – **transgender identity (transgenderism)**;
- lack of sense of belonging to both female and male social groups – **non-binary gender identity**;

gender equality – a legal and social principle, according to which all persons enjoy equal rights and opportunities, have equal access to resources and benefits, and bear equal responsibility in all spheres of state, public, cultural, economic and private life, regardless of sex, gender identity or sexual orientation;

gender statistics – collection, analysis and presentation of sex-disaggregated data reflecting gender differences and inequalities in various spheres of life for the purpose of identifying problems, monitoring, evaluating and promoting gender equality;

household labor (not work from home) – an independent type of unpaid labor activity aimed at satisfying the needs of the family, which does not have any quantitative equivalent or socially recognized significance;

quotas – the level of representation of persons of a certain sex, gender or sexual identity in political institutions and other spheres of public life established by normative legal acts or constituent documents, which shall be applied on a temporary basis until gender balance is achieved;

sex (biological) – biologically determined physical, physiological and hormonal differences between female and male organisms;

equal opportunities – a system of means and conditions necessary for the effective achievement and realization of equal rights of all persons, regardless of sex, gender identity and/or sexual orientation;

equal responsibility – all persons bear equal legal and social responsibility for the performance of their duties and compliance with the law, regardless of sex, gender or sexual orientation;

equal rights – absence of restrictions or privileges based on sex, gender identity or sexual orientation;

reproductive health – a state of physical, mental and social well-being related to the functioning of the reproductive system and a person's fertility;

reproductive rights – the guaranteed opportunity for everyone to make independent and responsible childbearing decisions without any discrimination, as well as to carry out these decisions with access to necessary information, medical, psychological, social and legal services, regardless of sex, gender identity or sexual orientation;

sexism – discrimination based on sex;

sexual orientation (homosexuality, heterosexuality, bisexuality, asexuality) – a person's stable emotional, romantic and/or sexual attraction to partners of a certain sex or several sexes (genders);

sexual harassment – a special form of discrimination based on sex, gender identity or sexual orientation, which is characterized by unwanted or offensive behavior or action of sexual nature towards the discriminated person, expressed physically, verbally or non-verbally;

special measures – actions of organizational, legislative, institutional nature aimed at supporting persons of a certain gender in the most discriminatory sphere of life, which may be temporary;

vulnerable gender groups – categories of persons at increased risk of discrimination, undue restriction of rights and freedoms or violence on the grounds of sex, gender identity or sexual orientation, which may be supplemented by other characteristics, including age, disability, social status, etc. In the context of gender equality, vulnerable groups include: women and girls, LGBTQ+ persons, single mothers, people with disabilities, adolescents, the elderly, people living in rural areas, migrants and refugees, ethnic minorities, women in detention, women in conflict zones and other groups whose rights are systematically violated due to existing social inequalities.

Article 2. Goals of this Law

The goals of this Law are as follows:

- achievement of gender equality, which guarantees equal rights, equal opportunities and equal access to participation in political, economic, social, public and cultural spheres of civic life for all people, regardless of sex, gender identity or sexual orientation;

- prohibition, prevention and elimination of all forms of direct and indirect discrimination on the basis of sex, gender identity or sexual orientation;

- implementation of a socially just gender policy, creation of a national mechanism (institutions and measures) to ensure gender equality.

Article 3. Legislation of the Republic of Belarus on gender equality

Legislation of the Republic of Belarus on ensuring gender equality is based on the Constitution of the Republic of Belarus and consists of this Law, other laws and normative legal acts, as well as international legal enactments ratified by the Republic of Belarus.

If an international treaty ratified by the Republic of Belarus contains rules that differ from the stipulations of this Law and other normative legal acts, the international treaty's rules shall be applied.

Article 4. Sphere of application of this Law

This Law shall be applied in all spheres of public life.

The requirements of this Law are not applicable to:

1) observance of religious norms, performance of religious rites and the work of clergy members of registered religious associations;

2) relations in family or private life.

Article 5. Prohibition of discrimination on the grounds of sex, gender identity or sexual orientation

All forms of discrimination based on sex, gender identity or sexual orientation, including unacceptable behavior or threat thereof, regardless of whether it is an isolated incident or regular action directed against the above-mentioned persons, the purpose, result or potential consequences of which may include infliction of physical, psychological or economic harm, are prohibited.

The following shall not be considered as discrimination on the basis of sex, gender identity or sexual orientation:

- induction of exclusively male persons into compulsory military service in cases prescribed by legislation of the Republic of Belarus;
- establishment of special guarantees related to the functions of pregnancy, birth and breastfeeding of children;
- special regulation of social, labor and other relations in cases where sexual identity is a determining factor in professional and/or other activities;
- adoption of temporary special measures aimed at achieving de facto equality between persons of different sexes in accordance with the law;
- other cases specified in this Law.

CHAPTER 2. STATE GUARANTEES FOR ENSURING GENDER EQUALITY

Article 6. State policy on ensuring gender equality

1. State policy on ensuring gender equality is aimed at:

- creating conditions for achieving gender equality in all spheres of public life;
- preventing and combating discrimination on the grounds of sex, gender identity or sexual orientation, including the elimination of all forms of discrimination against women;
- implementing the necessary measures to ensure equal rights and equal opportunities for all persons in all spheres of state and public life;

● improving and developing national legislation on the basis of universally recognized principles of international law and international obligations of the Republic of Belarus in the field of gender equality;

● creating and developing national mechanisms for achieving gender equality in the executive and legislative branches of government;

● applying a gender approach in the development and implementation of strategic forecasts of socio-economic development of the country, government programs, republican and local budgets;

● developing and introducing mechanisms for carrying out gender expertise;

● introducing gender indicators and improving gender statistics in all spheres of activity;

● organizing a system of gender training for civil servants at all levels;

● establishing and developing a system of gender education, upbringing and awareness-raising measures, including supplementary education;

● protecting civil society from gender-based disinformation.

Article 7. Subjects of implementation of gender policy of the state

1. Soim of the Republic of Belarus

● forms the legislative framework of the state's gender policy by adopting laws and other normative legal acts aimed at ensuring equal rights and opportunities;

● conducts parliamentary hearings, round tables and other public events on gender equality issues, and supervises the implementation of adopted acts;

● contributes to the improvement of existing legislation in order to eliminate and prevent discrimination on the grounds of sex, gender identity or sexual orientation.

2. In order to implement the constitutional principle of equal rights, freedoms and equal opportunities, the President of the Republic of Belarus:

● provides political support for measures aimed at achieving real gender equality;

3. Government of the Republic of Belarus, within the scope of its powers:

● develops and implements a unified state policy to achieve gender equality in all spheres of life, including through the adoption of relevant target-oriented state programs;

● formulates and approves comprehensive plans to prevent and eliminate gender discrimination in the socio-economic sector, health care, education, politics, science, cultural and other sectors;

● secures financing of activities aimed at achieving gender equality from the state budget and extra-budgetary sources (donations, grants, international assistance, etc.);

- forms the Coordination Council on Gender Policy (hereinafter referred to as the Coordination Council), determines the procedure for establishing the Coordination Council, its powers and activities;

- coordinates and supervises the activities of the republican bodies of state administration and local self-governing authorities with regard to compliance with the principles of gender equality, as well as ensures interaction between them;

- submits an annual report to the Soim of the Republic of Belarus on the state of gender policy, which reflects the results achieved, problems identified and proposed measures to address them;

- combines the efforts of state bodies and civil society to implement socially just gender policy, while promoting the development of partnership relations between them;

- exercises other powers in the field of gender equality in accordance with the legislation of the Republic of Belarus.

4. Local self-governing authorities

- elaborate and implement programs and projects to ensure gender equality at the level of pawiats with due consideration of the specifics of socio-economic development of the respective administrative-territorial unit;

- facilitate cooperation with non-governmental associations, educational, cultural and other organizations in planning and implementing measures to ensure gender equality;

- develop and use gender statistics to analyze and adjust the policies of pawiats and gramadas.

5. Courts

Judiciary and other authorized bodies in the field of justice and protection of rights and freedoms of citizens within the scope of their competence:

- ensure judicial and legal protection of the rights and legitimate interests of citizens in case of violation of the provisions of this Law and other normative legal acts that regulate gender equality issues, guaranteeing fair and impartial consideration of complaints and petitions;

- consider cases on gender discrimination subject to the principles enshrined in this Law and international acts ratified by the Republic of Belarus with due account taken of legal practices and positions of international bodies;

- submit proposals on changing or abolishing discriminatory norms and practices to the bodies that issued them or to higher instances, if such norms and practices contravene the law on gender equality;

- exercise other powers in the sphere of judicial and legal protection provided for by the legislation of the Republic of Belarus.

6. Non-governmental organizations, trade unions and other civil society institutions:

- contribute to the dissemination of knowledge about gender equality and legal mechanisms of protection against discrimination, participate in educational, cultural and informational activities, including among young people;

- cooperate with the bodies of state power, local self-governing authorities and other stakeholders in the formation, implementation and evaluation of the effectiveness of state programs and activities in the field of gender equality;

- initiate public campaigns and conduct independent monitoring of compliance with gender equality principles.

Article 8. Gender expertise of adopted draft laws and other normative legal acts

1. Gender expert review of draft laws and other normative legal acts (hereinafter – normative acts) shall be carried out by the standing State Expert Committee with the aim of identifying and preventing direct and indirect discrimination on the basis of sex, gender identity or sexual orientation, as well as assessing the impact of elaborated and adopted legal norms on the position of these persons in various spheres of public life.

2. Independent experts and members of the public shall be included in the composition of the committee on a mandatory basis.

3. The State Expert Committee attached to the Government of Belarus shall fulfill the following functions:

- organizes and conducts gender expert review of draft laws, other normative acts and state programs for compliance with the Constitution of the Republic of Belarus, international treaties ratified by the Republic of Belarus, as well as this Law and other normative legal acts in the field of gender equality;

- creates registers (databases) of experts who possess necessary qualifications and experience in the field of gender equality, including knowledge of the relevant norms of international law.

- develops methodological materials and recommendations on gender expertise procedures.

3. Researchers, public figures, experts from international organizations, specialized non-profit organizations (NPOs), trade unions and other entities possessing recognized competencies in the field of gender equality may be involved in gender expertise on an open competition basis or at the suggestion of public authorities;

Independent experts are entitled to participate in parliamentary hearings, meetings of relevant committees and commissions of legislative bodies, and to provide expert opinions in written form.

4. Draft laws are subject to mandatory gender expertise prior to being submitted to the Soim;

5. The expert opinion shall include:

5.1. analysis of potential risks of direct or indirect discrimination on the grounds of sex, gender identity or sexual orientation;

5.2. assessment of the long-term socio-economic impact of the proposed norms from the perspective of gender equality;

5.3. recommendations on introducing amendments or additions with the aim of eliminating the identified discriminatory provisions or minimizing the negative impacts.

In case of a negative opinion of the gender expertise, the developer of the draft law shall be obliged to improve it with due account taken of the recommendations or justify the need to keep the respective norms unchanged.

6. The results of gender expert review shall be made available to the public in accordance with the procedure established by the legislation of the Republic of Belarus, except for information classified as state secret or other secrets protected by law;

State authorities shall take due account of the results of gender expertise when making decisions related to further promotion of a normative act through the legislative procedure.

Article 9. Development of state statistics and monitoring in the field of gender equality

1. Principles of data collection and analysis

The statistical data collected by state bodies should be disaggregated by sex and, if necessary, take due account of other features (age, region of residence, socio-economic status, disability status, etc.), which allow to carry out a more complete identification and analysis of differences in the situation of gender groups.

The applied methods of statistical data collection and processing should not contain discriminatory language and stereotypes.

2. Main areas of monitoring and statistical recording

State bodies and organizations authorized to collect and summarize statistical data shall be obliged to conduct regular monitoring and analysis of the situation of gender groups, including but not limited to the following spheres of life:

1) labor and economy: employment rate, including the level of entrepreneurial activity, remuneration, career growth, unemployment, duration of the working day, availability of flexible forms of employment, etc.;

2) healthcare: life expectancy, morbidity level, access to medical services, reproductive and mental health;

3) education and science: quantitative representation of women and men at different levels of education, in higher education institutions, in scientific activities, difference in accessibility of opportunities for advanced vocational training;

4) political and public sphere: shares of women and men in deputy corps and other elective positions, public offices, management bodies of political parties and non-governmental organizations;

5) social protection: data on the coverage of social-support measures for women and men, difference in pensions and benefits, as well as indicators reflecting the situation of vulnerable and discriminated groups (single parents, large families, etc.);

6) culture: accessibility of cultural events and resources to all persons, opportunities for participation in the creation and dissemination of cultural values, recognition of the cultural value of created products without gender discrimination;

7) residential sector: living conditions, accessibility of social services, presence or absence of discrimination in the process of renting or purchasing housing.

3. Organization and coordination of monitoring

Coordinating Council on Gender Equality is the main coordinating body for monitoring gender equality;

Coordinating Council develops methodological recommendations for all levels of state statistics and determines priority areas for the analysis of indicators related to gender equality;

State statistical bodies are responsible for the completeness, relevance and reliability of the collected and processed information, as well as for its timely provision to competent authorities and stakeholders.

4. Publication and use of statistical data

Systematized and generalized indicators reflecting the state of gender equality in various spheres of life should be published on a regular basis (at least once a year) in official statistical bulletins, on relevant websites and other resources accessible to the public;

State bodies, scientific and non-governmental organizations have the right to use statistical data and monitoring results in the preparation of analytical reports, scientific studies, recommendations and proposals for the improvement of the state's gender equality policy;

Methodological materials describing the methods used for collecting and analyzing the information shall be published along with summary data to ensure transparency and verifiability of obtained results.

5. Data validity control and grievance mechanism

In the event of detection of inaccuracy or untimely provision of statistical data, or availability of information on concealment or distortion of statistics on gender equality issues, the authorized bodies shall carry out verification and take measures in accordance with the legislation in force;

Stakeholders (citizens, non-governmental associations, scientific organizations, etc.) have the right to file complaints and petitions with the state statistical bodies and

supervisory authorities, demanding correction or introduction of additions to official statistics, if they consider it incomplete, unreliable or inconsistent with the principles of objective and impartial monitoring.

CHAPTER 3. ENSURING GENDER EQUALITY IN THE POLITICAL PUBLIC SPHERE

Article 10. Ensuring gender equality in the electoral process

1. All citizens have equal electoral rights and equal opportunities to take part in the elections of the President of the Republic of Belarus, deputies of the Soim, deputies of local self-governing bodies, which are guaranteed by the Constitution and the Electoral Code of the Republic of Belarus.

2. Women, men, persons identifying with other genders shall be provided with equal rights and opportunities to elect and be elected, as well as to participate in the establishment of election commissions at all levels.

3. In order to achieve gender equality, the state government shall be authorized to take special measures aimed at supporting candidates of the underrepresented gender.

4. When preparing lists of candidates from political parties and electoral associations for district elections, Equal opportunities for representation of persons of both sexes shall be created in the preparation of lists of candidates nominated by political parties and electoral associations in the corresponding districts. Men and women should be evenly represented throughout the list of candidates. At least two out of every five candidates should be persons of underrepresented gender.

5. In case of failure to fulfill the requirements specified in this article, the election commission shall notify the respective political party or electoral association of committed violation within three days.

The election commission shall decline to register the list of candidates nominated by a political party or electoral association that refuses to amend the list of candidates within three days.

6. The decision of the election commission may be appealed to a higher election commission and to the court.

Article 11. Ensuring gender equality in the activities of political parties and non-governmental organizations

1. Political parties and non-governmental organizations are obliged to create equal opportunities for women, men and persons with other gender identities – members of political parties and NGOs, including but not limited to:

- involvement in the governing bodies of a political party or non-governmental organization;

- creating conditions for underrepresented gender groups to participate in political and public activities;

- nomination for elective positions in state and local self-governing bodies.

2. Political parties and non-governmental organizations have the right to establish representation quotas for underrepresented gender group in their governing bodies. Quotas are applied with the aim of ensuring de facto equality of the genders.

Article 12. Activities of NGOs on ensuring gender equality

1. Non-governmental organizations, including those established for the purpose of implementing the constitutional principle of gender equality:

- participate in the development of documents on gender equality issues, which are adopted by state bodies and local self-governing authorities;

- monitor the implementation of decisions aimed at achieving gender equality;

- conduct research on gender aspects of socio-political life;

- represent and defend the rights of citizens, who have been subjected to discrimination on the basis of sex, gender identity or sexual orientation, in courts and other state bodies;

- support candidates for elective positions in the state and local self-governing bodies, whose electoral programs provide for upholding the principles of gender equality;

- carry out other activities with the aim of ensuring gender equality.

2. The establishment and activities of NGOs on the protection of the rights of persons of a certain sex and vulnerable gender groups shall not constitute discrimination.

CHAPTER 4. ENSURING GENDER EQUALITY IN LABOR RELATIONS AND SOCIAL SPHERE

Article 13. Inadmissibility of discrimination on the grounds of sex, gender identity or sexual orientation in the sphere of social and labor relations

The prohibition of discrimination on the grounds of sex, gender identity or sexual orientation in the sphere of labor relations and professional occupation applies to employees working by hire, individually or self-employed persons without regard to their contractual status, persons undergoing vocational training, including trainees and apprentices, employees whose employment contracts have been terminated, volunteers, jobseekers and job applicants, pensioners, disabled persons and others.

Article 14. Gender-based violence and harassment in the workplace.

Gender-based violence or threat thereof, including cases of sexual harassment directed at persons because of their sex, gender identity or sexual orientation, whether isolated or recurrent, the purpose, effect or potential consequence of which is to cause physical, psychological or economic harm, shall be considered as unacceptable behavior.

It encompasses situations involving violence and harassment in the workplace, arising during work, related to work or arising in connection with work performed:

- at the place of employment, including public places and private premises when they serve as a workplace;
- at places where the employee receives wages, takes meals or rest breaks, or uses sanitary facilities;
- during business travels and trips, professional training, events or public activities;
- in the course of work-related communications, including with the use of information and communication technologies;
- in the housing provided by the employer;
- while traveling to and from work.

Article 15. Sexual harassment as a special form of gender discrimination

Sexual harassment is a special form of sex discrimination, involving unwanted verbal or non-verbal behavior of a sexual nature towards a person who is in a position of official, material or other dependence, the consequences of which include humiliation of the person's dignity and creation of unfavorable, hostile, degrading environment.

Sexually motivated behavior refers to:

- verbal or written unwanted tokens of affection, assessments, suggestions and other sexual or offensive remarks, blackmail, threats or demand to provide sexual services as a condition of admission to employment or staying in employment, getting promotion, better conditions and benefits, passing the exams, issuing the documents, as well as dirty jokes, spicy stories, innuendos, etc.;
- non-verbal, physical behavior: obscene hand gestures and touching, sexual abuse, coercion to sexual intercourse or attempted rape.

Officials and employees of state bodies and administrations, educational institutions, organizations, regardless of their status and form of ownership, shall not have the right to subject citizens of any gender to sexual harassment, coercion or persecution in connection with rejection of his (her) sexual advances, as well as in the case where the person subjected to sexual harassment files a complaint with competent authorities against sexual discrimination in labor relations, professional occupation, other social relations.

Article 16. Employers' responsibility to ensure gender equality in labor relations

In order to achieve gender equality in social and labor relations, employers – official representatives of an organization, regardless of its status and form of ownership, or individuals with the right to hire - are required to:

1) create equal opportunities and apply equivalent selection criteria for women and men, including persons with gender identities and sexual orientations, when hiring and providing them with equal access to vacant positions, except as otherwise provided for by the law;

2) employ equal numbers of men and women in different positions where possible, thereby ensuring gender balance in the organization;

3) pay out equal wages and supplementary benefits to women and men, including persons with different gender identities and sexual orientations, for work of equal value, guarantee equal wage increase based on a fair system of labor evaluation, and ensure transparency in wage determination;

4) create equal opportunities for professional development, acquisition of practical work experience, retraining, occupational advancement and promotion;

5) inform employees about potential vacancy filling or wage increases, provide a written justification of refusal of promotion at the employee's request, make a referral for upgrade training courses;

6) contribute to achieving an optimal balance between work and family life of employees, create favorable conditions for pregnant women and parents of both sexes with young children;

7) create safe working conditions that ensure the preservation of life and health of both women and men, as well as persons with different gender identities;

8) take measures to ensure non-interference with private life and respect for personal dignity of employees, regardless of sex, gender identity, or sexual orientation;

9) provide for the prevention and elimination of gender discrimination in the workplace, including discrimination of working women, as well as workers belonging to one or more vulnerable groups or temporarily exposed groups;

10) take appropriate measures to prevent gender-based violence and harassment;

11) pay particular attention to risk factors that:

- arise from working conditions and work schedules, forms of organization of work, and human resource management methods;
- affect third parties such as customers, consumers, service providers, users, patients, and members of the public;

12) take appropriate measures in the conditions and sectors where workers and other stakeholders may be more vulnerable to violence and harassment, such as night work,

working in isolated locations, healthcare, hospitality, social services, emergency services, household labor, transportation, education, and the entertainment industry;

13) strengthen focus on the protection of migrant workers, especially female migrant workers (if present in the organization), from sexual harassment in the workplace;

14) recognize the effects of domestic violence on labor relations and take measures to mitigate them;

15) adopt and implement a policy on ensuring gender equality within the organization in consultation with employees and their representatives;

16) give systematic training to officials and employees of the organization in implementing the programs aimed at promoting gender equality, preventing discrimination, gender-based violence, and harassment in the workplace;

17) inform employees about the rights guaranteed by this Law.

Article 17. Discriminatory actions by employers

In the field of labor relations, the actions of employer are considered discriminatory in the following instances:

1) unreasonable refusal to hire an employee on the basis of sex, gender identity, or sexual orientation, family responsibilities, or in any other circumstances unrelated to the employee's professional qualities;

2) giving preference to an underskilled person over a person of the opposite sex, who has better qualifications;

3) laying down conditions for hiring that put persons of one sex at a disadvantage compared to persons of the other sex;

4) setting less favorable terms of remuneration or provision of additional guarantees in labor relations for an employee or employees of one sex compared to an employee or employees of the other sex, who are performing work of equal value;

5) placement of job advertisements containing requirements and criteria that give preference to persons of one or the other sex, except as otherwise provided for by the law;

6) requiring the submission of documents, which are not provided for by national legislation and job advertisement;

7) imposition of disciplinary sanctions against an employee, modification of working conditions, transfer to another job or termination of employment contract, forces them to resign voluntarily or by mutual agreement on the grounds of sex, gender identity or sexual orientation;

8) ignoring the specific needs of working persons or subjecting them to worse treatment in connection with pregnancy, childbirth, gaining a parental status, or performing family duties;

9) directing the actions, distributing the work tasks, or laying down working conditions in a way that puts employees of one sex at a disadvantage compared to employees of the other sex;

10) perpetuating and disseminating patriarchal stereotypes within the organization, ignoring or belittling the business qualities and professional skills of women and other vulnerable gender groups;

11) condoning gender-based violence, including sexual abuse, or failing to take necessary measures to stop gender-based or sexual harassment, despite being aware of such facts;

12) harassing or intimidating an employee who filed a petition or complaint with competent authorities or court against discrimination on the basis of sex, gender identity, or sexual orientation;

13) exerting pressure on employee's representative, witness or a person that provides explanations in connection with a complaint or other legal proceedings concerning discrimination on the basis of sex, gender identity, or sexual orientation.

Cases of hostile treatment or producing a negative impact on the person, who invoked the rights and obligations established by this Law or assisted another person in defending his/her rights, are also considered as discriminatory actions.

Article 18. Establishment of additional guarantees at the level of local regulatory legal acts, which ensure gender equality in social and labor relations

1. Collective bargaining agreements, contracts, and other local regulatory legal acts concluded or adopted in accordance with the law must contain provisions guaranteeing equal rights and opportunities for all persons employed in the labor sector.

2. General, industry-specific, and regional wage agreements and collective bargaining contracts may include provisions which ensure:

- equal rights and equal opportunities in the labor market;
- equal rights and equal opportunities for determining wage levels;
- elimination of the gender pay gap, including through professional development (retraining) of personnel, closure of unskilled work places, standardization of physical labor with due account taken of the difference in muscular strength of women and men, etc.;
- implementation of measures aimed at improving the situation of persons with family responsibilities;
- staffing of organizations (structural units) and promotion of employees under otherwise equal conditions, with preference given to persons of the sex, for which proportional gender representation in the organization has not been achieved yet;
- implementation of measures aimed at preventing and eliminating violence and harassment;

- the right of an employee to leave the workplace where there are sufficient grounds to believe that the situation at the workplace poses an imminent serious threat of violence and harassment;

- implementation of measures to protect complainants, plaintiffs, victims, witnesses, and informants from coercion in connection with filing complaints with competent authorities against gender discrimination;

- the possibility of granting emergency leave or establishing a flexible work schedule for victims of domestic violence.

Collective bargaining agreements may provide for the appointment of a gender equality officer- acting as an advisor to the head of the organization - from among the employees on a voluntary basis.

The terms of collective bargaining agreements, contracts and other local regulatory legal acts, which discriminate against employees on the grounds of sex, gender identity and sexual orientation, shall be deemed null and void.

Article 19. Guarantees of gender equality in the event of mass layoffs of employees

In case of mass layoffs, the employer is obliged to take due account of the existing ratio of women to men in the organization, while avoiding discrimination of representatives of one or the other sex.

Article 20. Gender equality in social protection systems

It is unacceptable to apply social protection and social insurance conditions that worsen the situation of persons of one or the other sex, including in systems serving as a substitute or supplement to state social insurance:

1) when creating opportunities for participation and use thereof;

2) when fixing the contributions and contribution rates;

3) when setting the amount of payments, including supplementary benefits to spouses and dependents, as well as when fixing the duration of entitlement to payments.

Gender discrimination is prohibited when establishing and applying provisions on social protection in cases of sickness, disability, award of pension, including due to early retirement, accidents at work and occupational diseases, unemployment, as well as social protection provisions that envisage payment of social benefits, including pensions for widows and orphans, targeted payments and material assistance.

State bodies, local self-governing authorities, and official representatives of organizations are obliged to accommodate the interests of all persons in a indiscriminate way, regardless of sex, gender identity, or sexual orientation, when implementing measures of social protection.

Article 21. Ensuring equal rights and equal opportunities in the field of entrepreneurship

Equal rights and opportunities for conducting entrepreneurial activities are guaranteed to all persons, regardless of sex, gender identity, or sexual orientation.

Equal opportunities in entrepreneurship provide for the removal of barriers that prevent representatives of various gender groups, in particular women, from participating in entrepreneurial activity.

Positive actions may be taken at the national and regional levels with due account of statistical indicators in order to eliminate gender imbalance in entrepreneurial activity by encouraging women's entrepreneurship and creating equal conditions for receiving funding, training, access to resources and information.

Article 22. Guarantees of equal treatment of women and men in household labor relations

Persons of different sexes have equal responsibility for performing household work aimed at satisfying the needs of the family.

Household work cannot be used as a means of gender discrimination. It should be carried out jointly by women and men on an equal basis.

In order to facilitate elimination of gender stereotypes in family relations, the competent authorities shall:

- regularly analyze unpaid work performed by women and men in the context of household management and social reproduction;
- create favorable conditions for combining professional careers with family responsibilities and childrearing;
- develop measures to support women and men involved in childcare and childrearing;
- create conditions for involving men in childcare and childrearing, in particular enshrine in law the fathers' right to paid parental leave in the first few years of child's life on an equality with mothers, as well as establish quotas determining the minimum number of days of parental leave that must be taken by fathers;
- implement special educational and information programs that contribute to transformation of traditional assumptions about gender roles and the division of labor in the family;
- promote the development of a broad network of "work-at-home" jobs with flexible working hours and new forms of division of labor;
- introduce and scale up flexible forms of employment.

CHAPTER 5. ENSURING GENDER EQUALITY IN CIVIL SERVICE

Article 23. Providing representatives of different gender groups with equal opportunities for entering and doing civil service

1. In accordance with the constitutional principle of gender equality, discrimination is not permitted when entering and doing civil service, which means that it is not allowed to establish direct or indirect restrictions or provide advantages based on sex, gender identity, or sexual orientation in violation of this Law and other normative legal acts of the Republic of Belarus.

2. Heads and authorized officials of state bodies, as well as heads of local executive and administrative authorities, are obliged to ensure the following: all applicants, regardless of their sex, gender identity, or sexual orientation, have equal access to civil service and service in the public office of local self-governing authorities with due consideration of business qualities and professional attributes of the applicants; uniform and transparent criteria are used for the selection and admission of candidates to civil service, protection from all forms of direct or indirect discrimination, including sexual harassment and discriminatory remarks, as well as prevention of unfavorable working environment that creates obstacles to professional development and career growth.

3. Heads of state bodies and their structural subdivisions are obliged to take measures to raise civil servants' awareness of the principles and provisions of this Law, including by way of conducting training sessions, workshops, and other educational events on gender equality issues.

4. Unbalanced representation of persons of one or the other sex is not be permitted in the system of republican bodies and administrating authorities, as well as in local executive and administrative bodies of the Republic of Belarus. State bodies and local self-governing authorities shall ensure a balanced gender composition at all levels, including senior management and executive positions.

5. In the event of identifying imbalanced representation (significant predominance of persons of one sex), competent authorities shall develop and adopt special programs and plans to eliminate detected imbalance.

6. It is permitted to implement temporary special measures aimed at achieving balanced representation of women and men in civil service and local self-governing authorities. Such measures include introduction of quotas, targeted educational and personnel development programs, mentoring, etc.

7. The conditions for implementing special measures, their scope, duration, and implementation procedures shall be established by the legislation of the Republic of Belarus and regulatory legal acts adopted in furtherance of legislation, as well as local acts of state bodies and local self-governing authorities.

8. Heads of state bodies, administrations and local self-governing authorities are personally responsible for complying with the principle of equal opportunities in the

process of entering civil service and working as a civil servant in accordance with this Law.

Article 24. Providing representatives of different gender groups with equal access to competitions to fill the positions of civil servants

1. Vacant positions in civil service, including executive posts, shall be filled through competitive procedures that ensure equal conditions of participation for all applicants, regardless of sex, gender identity, or sexual orientation.

2. The procedures for competitive filling of vacant positions shall be carried out in an open and transparent way with due account of objective criteria for assessing the level of education, experience and professional competence of applicants, without any preferences or restrictions based on sex, gender identity and sexual orientation.

3. It is not allowed to announce a competition to fill vacancies in civil service with the participation of persons of only one gender, except as otherwise provided for by the law or in cases where belonging to a particular gender group is a strict requirement substantiated by the nature of performed duties, provided that such a requirement complies with international law.

4. Competition announcements shall not contain any wordings that allow for direct or indirect discrimination against persons with a different gender identity or sexual orientation, nor shall they contain hidden restrictions or calls that could lead to infringement of the rights of representatives of a particular sex, gender identity, or sexual orientation.

5. Personnel departments of state bodies are responsible for providing competition commissions with complete, accurate and objective information about the level of education and professional qualification of persons participating in the competition, as well as data on women to men ratio in relevant official positions and in the state body as a whole.

6. Personnel departments are required to maintain and regularly update registers (databases) of vacant positions, take due account of gender statistics, and, if necessary, make recommendations on implementation of special measures aimed at ensuring gender balance.

7. The information listed in part 3 of this article (including data on gender composition of employees) shall be submitted by personnel departments for:

- consideration by the attestation commissions when carrying out assessment of civil servants;

- assigning civil service classes (ranks, titles), as well as when deciding on promotion and raising in rank;

- determining the amount of remuneration, supplementary payments, and other incentives.

Attestation commissions are obliged to take into consideration this information in combination with professional competencies of the civil servant. It is unacceptable to

make decisions on demotion or refusal to promote a person on the grounds of sex, gender identity, or sexual orientation.

8. Personnel registers of public positions shall not establish preferential employment conditions, age limits or other formal restrictions relating exclusively to persons of one sex, except in cases expressly provided for by law in connection with the special nature of civil service.

9. Detection of discriminatory provisions in personnel registers, competitive documentation and local regulatory legal acts of state bodies shall entail the obligation to immediately revise such provisions and bring them in line with the principles of this Law and other regulatory legal acts of the Republic of Belarus.

10. If a person participating in a competition believes that his/her rights have been violated or he/she has been discriminated against on the grounds of sex, gender identity, and/or sexual orientation occurred during consideration of his or her candidacy, he/she shall have the right to appeal the decision of the competition commission to a higher authority or to a court.

11. The appeal procedure is regulated by the laws of the Republic of Belarus on civil service, as well as procedural legislation and this Law.

CHAPTER 6. ENSURING GENDER EQUALITY IN CULTURE AND EDUCATION SECTOR

Article 25. Guarantees of equal opportunities for receiving education and participating in scientific activities

1. The state government guarantees the constitutional right to education and freedom of scientific activity for all persons, regardless of sex, gender identity, or sexual orientation, including but not limited to:

- equal access to all forms and levels of education, vocational training and professional development programs;
- equal opportunities for participation in educational and scientific activities, including submission of applications for grants, competitions, internships, scientific publications, and research projects;
- support and advancement of gender education, development of inclusive approaches in education sector;
- introduction of special educational programs on gender issue and gender equality;
- promotion of gender studies, feminist theory, LGBTQ+ topics, inclusion and related issues;
- development and use of educational programs, textbooks and manuals that have undergone gender expertise and exclude the possibility of direct or indirect discriminatory propaganda.

2. Educational and scientific institutions are obliged to ensure equal conditions for all persons, regardless of gender identity and/or sexual orientation, in the following instances:

- admission to educational institutions of any level of accreditation;
- selection of educational programs and academic branches;
- provision of scholarships, grants, loans, and other forms of support;
- retraining and professional development;
- access to research infrastructure (laboratories, equipment, data, etc.);
- participation in scientific projects, competitions, exchange programs, publications, and conferences;
- distribution of academic and scientific positions, scientific management, as well as access to internal grants and resources;
- academic career advancement, which includes attestation, thesis defense, as well as obtaining academic degrees and titles;
- performing any other actions related to realization of the right to education and freedom of scientific inquiry without discrimination.

3. The provisions of this article apply to all forms of education and scientific activity, including military, customs, law enforcement, and other specialized bodies engaged in scientific research, professional training, and retraining of personnel.

Special measures aimed at eliminating inequality and supporting vulnerable groups in the field of education and science shall not be considered as discrimination, provided that they:

- are temporary, proportionate, and justified;
- are implemented on a voluntary basis with due account for gender self-identification of students;
- do not restrict the rights of others and do not perpetuate inequalities at the institutional level.

Creation of separate programs, spaces, or formats, which take due account of assigned sex or gender identity, shall be permitted solely for the purpose of eliminating structural inequality, provided that this:

- excludes the possibility of forced sexual and gender segregation of students;
- ensures full participation of transgender, non-binary, and intersex people in the educational and scientific process;
- protects equal access to all forms and levels of education and science.

The Ministry of Education is obliged to monitor compliance of such measures with human rights principles, as well as prevent segregation and replacement of real equality by formal one.

Article 26. Guarantees of equal access to cultural values and cultural life

1. Equal access to cultural values, full participation in the cultural life of society, freedom of creative self-expression are guaranteed to every person, regardless of sex, gender identity, or sexual orientation.

2. The state is obliged to contribute to the creation of an inclusive cultural environment devoid of stereotypes and discrimination, while ensuring equal opportunities for participation in cultural and artistic initiatives.

3. Cultural initiatives aimed at supporting vulnerable groups shall not be considered as discrimination. These include:

- festivals, exhibitions, concerts, and other events organized for the purpose of drawing attention to issues of equality and social visibility of representatives of different gender groups;

- creation of artistic groups, initiatives, and creative spaces that share the experience of a particular group (e.g., LGBTQ+ or women's theaters, ensembles, media laboratories, etc.), provided that this does not restrict the rights of others.

CHAPTER 7. ENSURING GENDER EQUALITY IN HEALTHCARE SECTOR

Article 27. Guarantees of equal rights and opportunities in healthcare sector

1. All persons, regardless of sex, sexual orientation or gender identity, shall be guaranteed:

- equal access to health services in state and private healthcare institutions, as well as to health promotion and disease prevention programs;

- health protection, provision of healthcare in accordance with the Constitution of the Republic of Belarus, other regulatory legal acts and international treaties;

- ensuring reproductive rights and freedoms;

- reproductive health maintenance and promotion aimed at improving the quality of life and ensuring reproduction of population;

- setting up of women's/men's consultations, other special consultation services for pregnant women, expectant fathers, parents with children, family planning services;

- ensuring regular medical examinations of the reproductive system with the aim of early diagnosis of oncological diseases for both urban and rural residents;

- access to legally provided services for termination of pregnancy in safe manner, access to safe modern contraceptives and technologies;

- implementation of sex education programs for children and adolescents in the school education system, public education in reproductive rights and sexual behavior;

- providing everyone with effective medications through the network of pharmacies, outpatient and inpatient medical facilities to maintain reproductive health;

- providing transgender people with specialized medications;

- ensuring free access to statistics on health status of the population of the Republic of Belarus, including reproductive health;

- other measures necessary to ensure gender equality in healthcare sector.

3. The Ministry of Health and local self-governing authorities are required to set up specialized services (offices, consultations) for women, men, and persons with other gender identities.

4. The following actions shall not constitute discrimination on the grounds of sex:

- special protection of women during pregnancy, childbirth and breastfeeding;

- protection of motherhood and/or fatherhood;

- setting up of specialized medical consultations and offices intended to provide medical assistance to persons of one or the other sex.

CHAPTER 8. ENSURING GENDER EQUALITY IN THE FIELD OF PROTECTION OF CONSUMER RIGHTS

Article 28. Guarantees of gender equality in the field of consumer rights

1. Every person, regardless of sex, gender identity or sexual orientation, is guaranteed equal rights in the provision of services, production and sale of goods, as well as in the protection of their consumer rights.

2. The seller, manufacturer of goods and service provider are obliged to:

- apply the same payment terms, set the same prices, and provide everyone with equal guarantees for identical products, goods, services;

- avoid using gender stereotypes, offensive, sexist or ambiguous words, images, comparisons related to sex, gender identity or sexual orientation, when placing advertisements;

- observe the principle of gender equality in other cases related to consumption of goods and services.

3. It is not discriminatory practice to place advertising information about goods and services intended exclusively for the use of the persons of one or the other sex.

CHAPTER 9. MEANS OF LEGAL PROTECTION FROM GENDER DISCRIMINATION, RESPONSIBILITY FOR VIOLATION OF GENDER EQUALITY LEGISLATION

Article 29. Guarantees of equal access to means of legal defense

All persons, who have been subjected to gender discrimination, violence and harassment on the basis of sex, gender identity or sexual orientation, are guaranteed free access to appropriate effective means of legal defense as well as to safe, fair and effective dispute resolution mechanisms, including:

- complaint and investigation procedures;
- gender-sensitive dispute resolution mechanisms at the workplace and outside the workplace;
- the courts that have jurisdiction over cases related to gender discrimination;
- timely and effective litigation procedures;
- exemption from legal fees, access to free legal assistance, including the services of lawyers;
- means of protection of complainants, their representatives, witnesses and whistleblowers from victimization and coercion.

Article 30. Lodging a complaint about facts of gender discrimination

Persons who believe that they have been discriminated against on the basis of sex, gender identity or sexual orientation have the right to file corresponding complaints and petitions with state bodies, local self-governing authorities, Office of the Commissioner for human rights, and the court in the manner prescribed by law.

Persons or groups of persons shall be entitled to submit gender discrimination reports to the UN Human Rights Committee and the UN Committee on the Elimination of Discrimination against Women in the event of exhaustion of local remedies or unreasonable delay in applying such remedies.

Article 31. Reversal of the burden of proof of intent

In the event that the court or another competent authority considers a complaint of alleged gender discrimination, which was filed by a person or his/her representative, the burden of proof of the absence of intent to discriminate on grounds of sex, gender identity or sexual orientation is shifted to the defendant.

The person against whom the complaint was filed must prove that he/she did not violate the principle of gender equality within the framework of proceedings. Refusal to provide evidence is equivalent to acknowledging the fact of discrimination.

Reversal of the burden of proof does not apply in cases of criminal proceedings.

Article 32. Compensation for damages and moral harm caused by gender discrimination

1. In the case of violation of the person's rights as a result of gender discrimination, the affected person may demand cessation of harmful activities of the person who violated his/her rights, as well as claim compensation for corresponding material damage on legal grounds.

2. In addition to compensation specified in part 1 of this article, the victim of gender discrimination has the right to demand compensation for moral harm. Non-pecuniary damage is compensated regardless of the amount of material losses subject to reimbursement.

3. When determining the amount of compensation, the court shall take due account of the scope, duration and nature of discrimination.

Article 33. Protection of complainants, witnesses and other persons

1. Prosecution, punishment, intimidation, discrimination or other negative impact on applicants, complainants, victims, their representatives, witnesses, whistleblowers or other persons in connection with petitions filed with the competent authorities in response to facts of gender discrimination shall be prohibited.

2. Investigation of cases of persecution of complainants, witnesses and other persons shall be carried out by the prosecutor's office in the manner established by the legislation of the Republic of Belarus.

3. Measures of state protection of persons specified in this article shall be implemented in the manner prescribed by the legislation of the Republic of Belarus on the protection of witnesses and other parties to the criminal process.

Article 34. Responsibility for violation of legislation on gender equality

1. State bodies, local self-governing authorities and organizations, regardless of their status and form of ownership, bear administrative and civil legal liability for violating legislation on gender equality.

2. Officials of these bodies and organizations bear disciplinary, administrative civil and criminal liability for violating legislation on gender equality.

3. Disciplinary liability, the terms and procedure for applying disciplinary sanctions are regulated by the Labor Code of the Republic of Belarus, the Law of the Republic of Belarus "On Civil Service", Disciplinary Charters and other normative acts. Violation of the requirements of this law, the existence of the facts of gender discrimination in the organization may serve as a ground for dismissal or removal from office of the head of the organization or state body.

4. Civil legal liability is regulated by the Civil Code of the Republic of Belarus. It has the form of recovery of material damages from the offender and compensation for moral harm in the amounts determined by the court in favor of the person who has been subjected to gender discrimination.

5. Administrative liability for discrimination, i.e. direct or indirect restriction of human rights and freedoms, including on the basis of sex, gender identity or sexual orientation, is established by the Code of the Republic of Belarus on Administrative Offenses.

6. Criminal liability for discrimination, i.e. intentional violation of the rights, freedoms and legitimate interests of a person, including on the basis of sex, gender identity or sexual orientation, committed by a person using his/her official position, is established by the Criminal Code of the Republic of Belarus.

Article 35. Competence of the Commissioner for human rights

1. Commissioner for human rights:

- exercises control over compliance with this Law and ensures equal rights and opportunities for individuals, regardless of sex, gender identity or sexual orientation;
- submits an annual report on compliance with gender equality legislation;
- puts forward proposals for introducing amendments and additions to the legislation of the Republic of Belarus with the aim of achieving gender equality;
- exercises other powers stipulated by the Law “On the Commissioner for Human Rights” and the current legislation of the Republic of Belarus.

2. Commissioner for human rights considers complaints about direct or indirect discrimination on the basis of sex, gender identity or sexual orientation.

If the complaint is found to be fully or partially justified, Commissioner for Human Rights shall take measures to eliminate detected violations, including:

- submitting recommendations and motions to the relevant state bodies, local self-governing authorities, public officials or organizations for taking measures to eliminate violations;
- exercising control over implementation of recommendations and motions;
- providing the complainant with assistance in restoring his/her rights in the context of recognized violations.

3. Upon the consent of the parties, Commissioner for human rights can make contribution to the peaceful settlement of disputes over gender discrimination in the form of consultations or mediation service.

CHAPTER 10. FINAL PROVISIONS

Article 36. Entry into force of this Law

This Law shall enter into force within one month of the date of official publication thereof, with the exception of article 37, which shall become effective on the date of publication.

Article 37. Bringing the legislative acts into conformity with this Law

The Government of the Republic of Belarus shall do the following within three months of the date of adoption of this Law:

- submit draft laws for consideration by the Soim in so far as they relate to issues placed under the jurisdiction of the Soim in accordance with this Law;

- bring decisions of the Government of the Republic of Belarus in line with this Law, as well as ensure that the republican bodies of state administration and other state institutions subordinated to the Government of the Republic of Belarus revise and abolish their acts that contravene this Law;

- take other measures necessary for implementation of this Law.